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Case Number: 25TRCV3258 Hearing Date: September 3, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – September 3, 2026

Calendar No.

PROCEEDINGS

Lesvia

Aurora De Leon Torres v. City of Los Angeles, et al.

25TRCV03258

1. Lesvia Aurora De Leon Torres' Motion to Compel Further
Responses to Form Interrogatories, Set One, and Request for Sanctions

2. Lesvia Aurora De Leon Torres' Motion to Compel Further
Responses to Special Interrogatories,
Set One, and Request for Sanctions

3.

Lesvia Aurora De

Leon Torres' Motion to Compel Further Responses to Request for Production of
Documents, Set One, and Request for Sanctions

TENTATIVE RULING

Lesvia Aurora De Leon Torres' Motions to Compel Further Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, and Requests for Sanctions are denied.

Background

Plaintiff filed the Complaint on September 23, 2025. Plaintiff alleges the following facts. Plaintiff slipped and fell at LAX causing a fracture kneecap. Plaintiff alleges the following causes of action: 1. Governmental Liability – Dangerous Condition of Public Property (Gov. Code §§ 835, 840); 2. Negligence.

Motions to Compel Further Responses to Form and Special Interrogatories, and Requests for Production of Documents

Where responses to interrogatories have been served but the requesting party believes that they are deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. CCP § 2030.300(a). Notice of the motion must be given within 45 days after service of verified responses in question, or any verified supplemental responses. CCP § 2030.300(c). The motion must be accompanied by a meet and confer declaration in compliance with CCP § 2016.040. CCP § 2030.300(b).

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a

demand. (Code Civ. Proc.,
§ 2031.310, subd. (a).)

If a demanding party

believes the responding party responded inadequately, the demanding party may move for an order compelling further response.

(Code Civ. Proc., § 2031.310, subd. (a).) "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Plaintiff failed to set

forth meet and confer declarations in sufficient compliance with CCP §§ 2030.300, 2031.310, and 2016.040. (Declarations, Ian Hartsfeld).

Plaintiff's meet and confer

declarations must show "a reasonable and good faith attempt, either in person, by telephone, or by videoconference" to resolve the issues informally with opposing counsel, including whether the parties conferred on the retention of a court reporter for the hearing. CCP §§ 2016.040(a)(b). First, the meet and confer declarations fail to address the required component of meeting and conferring regarding the retention of a certified shorthand reporter. However, had this been the only deficiency, perhaps circumstances could have existed to excuse this requirement. Here, however, the substance of the meet and confer declaration and attempts are lacking.

"A determination of whether

an attempt at informal resolution is adequate also involves the exercise of discretion. The level of effort at informal resolution which satisfies the "reasonable and good faith attempt" standard depends upon the circumstances. In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of discovery requested, the prospects for success and other similar factors can be relevant." *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.

In Obregon, the Court

noted the following facts which it determined did not constitute a reasonable and good faith attempt to meet and confer regarding the issues remaining in the outstanding discovery requests and responses. “Upon receiving the expectable objections, plaintiff simply sent a single brief letter, late in the relevant time period. (Cf. *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439, 72 Cal.Rptr.2d 333 [mere bickering at deposition did not constitute reasonable and good faith attempt at informal resolution].) Plaintiff’s motion to compel, so far as the record on this petition reflects, makes no effort to explain why interrogatories of such breadth are proper in this case, an omission that reasonably suggests lack of a proper discovery objective. A single letter, followed by a response which refuses concessions, might in some instances be an adequate attempt at informal resolution, especially when a legitimate discovery objective is demonstrated. The time available before the motion filing deadline, and the extent to which the responding party was complicit in the lapse of available time, can also be relevant. An evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered. Although some effort is required in all instances (see, e.g., *Townsend*, supra, 61 Cal.App.4th at p. 1438, 72 Cal.Rptr.2d 333 [no exception based on speculation that prospects for informal resolution may be bleak]), the level of effort that is reasonable is different in different circumstances, and may vary with the prospects for success. These are considerations entrusted to the trial court’s discretion and judgment, with due regard for all relevant circumstances. In the instant case, whether reviewed according to the substantial evidence or the abuse of discretion standard, or an amalgam of the two, the trial judge’s decision that a greater effort at informal resolution should have been made is amply supported by this record.” *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432–433.

Here, in the instant action,

the meet and confer declarations essentially relay facts regarding the discussions between the parties regarding extensions and the providing of further responses. Then, Plaintiff’s counsel, in a blanket manner, concludes that Defendant refused to meet and confer. Fortunately for the Court, Plaintiff’s counsel provided the email chain between the parties as Exhibit 3. The email correspondences from Defendant’s counsel do not document a refusal to meet and confer. Instead, again, most of the correspondences detail discussions regarding extensions. The only real substantive email was provided by Plaintiff’s counsel on April 21, 2026. Plaintiff’s counsel states: “There seems

to be a disconnect. Please allow this meet and confer to provide clarity. The discovery responses were all objections. Please provide further substantive code compliant responses by April 27, 2026. Also ensure to include me in the service email to avoid further confusion." Simply stating that the responses were all objections and then demanding further responses do not constitute a sufficient meet and confer process. First, numerous discovery responses are at issue in these motions, generally, a meet and confer correspondence would detail each of the responses and provide factual and legal reasons why the responses that were served are insufficient. If indeed Defendant simply asserted objections for all the discovery requests, the meet and confer declaration, at a minimum, should explain why the objections are improper.

The Court notes that this deficiency also carries over to the motions themselves. The separate statements simply provide a conclusion that the responses are improper because Defendant served objections and objections are improper pursuant to CCP §§ 2030.220 and 2031.220. However, a party may serve responses with objections pursuant to CCP §§ 2031.210 and 2031.210. Plaintiff provides no facts or authority to indicate why the responses consisting of objections cannot be Defendant pursuant to these sections.

Motions to Compel

Therefore, for the foregoing reasons, Plaintiff's Motions to Compel Further Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, and Requests for Sanctions are denied.

Sanctions

Plaintiff's requests for monetary sanctions are denied.

Defendant's requests for monetary sanctions are denied.

While the requests for sanctions were denied this time, the Court will not hesitate to sanction the parties in the future for any misuse of the discovery process.

Defendant is ordered to give notice of this ruling.